

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE JOINT
RESOLUTION HJR1067

By: Eaves and Lepak of the
House

and

Daniels of the Senate

COMMITTEE SUBSTITUTE

A Joint Resolution directing the Secretary of State to refer to the people for their approval or rejection a proposed amendment to Section 2 of Article XXV-A of the Oklahoma Constitution; terminating effect of Medicaid expansion coverage mandate under specified condition; providing certain construction; providing for conditional effect; providing ballot title; and directing filing.

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES AND THE SENATE OF THE
2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

SECTION 1. The Secretary of State shall refer to the people for their approval or rejection, as and in the manner provided by law, the following proposed amendment to Section 2 of Article XXV-A of the Oklahoma Constitution to read as follows:

Section 2. A. In addition to those otherwise eligible for medical assistance under Oklahoma's Medicaid program, the State shall, until the conditions described in subsection C of this

1 section occur, provide medical assistance under Oklahoma's Medicaid
2 program to Low Income Adults.

3 B. No greater or additional burdens or restrictions on
4 eligibility or enrollment shall be imposed on persons eligible for
5 medical assistance pursuant to this Article than on any other
6 population eligible for medical assistance under Oklahoma's Medicaid
7 program.

8 C. If the federal medical assistance percentage (FMAP)
9 established under 42 U.S.C., Section 1396d(y) is reduced below
10 ninety percent (90%), then the duty imposed on the State by
11 subsection A of this section shall cease to have effect,
12 notwithstanding any subsequent increases to such FMAP; provided,
13 however, this subsection shall not be construed to prohibit the
14 Legislature from enacting laws to provide Medicaid coverage to Low
15 Income Adults.

16 SECTION 2. The proposed Constitutional amendment as set forth
17 in SECTION 1 of this resolution shall not become effective if the
18 the State Question resulting from Enrolled House Bill No. 4440 of
19 the 2nd Session of the 60th Oklahoma Legislature is approved by the
20 people, as certified by the Secretary of State.

21 SECTION 3. The Ballot Title for the proposed Constitutional
22 amendment as set forth in SECTION 1 of this resolution shall be in
23 the following form:

24 BALLOT TITLE

1 Legislative Referendum No. _____ State Question No. _____

2 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

3 This measure amends the Oklahoma Constitution. It amends
4 Section 2 of Article 25-A to state that if the federal medical
5 assistance percentage (FMAP) for Medicaid expansion drops below
6 ninety percent, then the State's constitutional duty to cover
7 Low Income Adults under Oklahoma's Medicaid program will end,
8 regardless of any later increases to the FMAP. It clarifies
9 that this measure does not prohibit the Legislature from passing
10 laws to provide Medicaid coverage to Low Income Adults. This
11 measure states that if the State Question resulting from
12 Enrolled House Bill No. 4440 of the 2nd Session of the 60th
13 Oklahoma Legislature is approved by the people, then this
14 Constitutional amendment shall not become effective.

15 SHALL THE PROPOSAL BE APPROVED?

16 FOR THE PROPOSAL — YES _____

17 AGAINST THE PROPOSAL — NO _____

18 SECTION 4. The Chief Clerk of the House of Representatives,
19 immediately after the passage of this measure, shall prepare and
20 file one copy thereof, including the Ballot Title set forth in
21 SECTION 3 hereof, with the Secretary of State and one copy with the
22 Attorney General.

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